

May 1, 2026

New York State Joint Utilities c/o
Constantine Spanos, Con Edison
Rick Abraham, National Grid

RE: **Comments of Vehicle Grid Integration Council on New York Joint Utilities' EV Configuration Decision Tree**

The Vehicle Grid Integration Council (VGIC) appreciates the opportunity to share comments on the New York State Joint Utilities EV Configuration Decision Tree (Decision Tree) for light-duty vehicles and residential DERs 50 kW or less. It is our understanding that the decision tree was developed through discussions at the Interconnection Technical Working Group (ITWG) as a classification tool for determining whether new electric vehicle supply equipment (EVSE) installations are subject to Standardized Interconnection Requirements (SIR) and distributed energy resource (DER) interconnection review.

The top-level branch of the decision tree appears to distinguish between new EVSE “connection type” as either load-only or bidirectional. The next level for the bidirectional EVSE branch indicates that an interconnection application is required. Only those bidirectional EVSE devices that have the latest UL 1741 SB certification in compliance with IEEE 1547-2018 meet the SIR and thus proceed through the interconnection review.

The Decision Tree does not recognize two common classes of bidirectional charging systems. The first are systems that are designed and deployed to **operate in bidirectional mode *only* when islanded from the grid**. These “break-before-make” systems incorporate robustly engineered, industry-standard protections using either a microgrid interconnection device (MID) or an automatic transfer switch (ATS) to prevent bidirectional charging unless the site is electrically isolated from the grid.

An ATS or MID makes unauthorized back-feeding physically and programmatically impossible. While connected to the grid, these bidirectional charging systems operate strictly as unidirectional charging systems. Because a MID provides the exact same “break-before-make” isolation as a conventional ATS, if utilities trust an ATS to safely isolate a fossil-fuel home standby generator, there is no technical justification to treat a MID differently. These systems do not operate in bidirectional mode when in parallel with the grid and, therefore, do not present an

inadvertent backfeed risk. These systems should not be directed to proceed through the SIR study process¹ because “distributed generation or energy storage systems neither designed to operate, nor operating, in parallel with the utility’s electrical systems are not subject to these requirements”; instead, they should be subject to existing processes for residential standby generators. If the existing requirements for residential standby generators are not sufficient, those requirements for standby generators should be updated for all standby generators (e.g., gas, diesel, etc.), rather than singling out a specific backup generator technology (e.g., EVs).

The second class of bidirectional charging systems not contemplated in the Decision Tree is bidirectional charging systems that **operate in unidirectional charging modes at all times, unless and until the manufacturer enables them for bidirectional charging.** Crucially, this enablement is a strict software-locked gate configured at the time of system commissioning. The **capability to enable bidirectional functionality is accessible only via a proprietary commissioning application utilized exclusively by the manufacturer or certified channel partners; it is not a setting that the customer can access or toggle on themselves.** This manufacturer enablement step would either occur to become (a) the above-referenced type of “island-only” system or (b) a grid-parallel bidirectional charging system following an approved SIR request.

For example, new electric school bus depots should be permitted to operate bidirectional charging systems in load-only mode before receiving SIR approval. Ordering and installing vehicles and chargers, only for them to sit idle, unable to charge to get children to school while awaiting SIR approval, is a negative customer experience that will undercut New York’s goals for electric school bus deployment. Notably, this treatment (connecting in load-only mode prior to receiving DER interconnection approval) has already been explicitly codified in the interconnection rules of California² and Maryland³, has been proposed in Nevada and Massachusetts, and has been reported to occur in other jurisdictions.

¹ New York Public Service Commission, August 1, 2025, New York State Standardized Interconnection Requirements and Application Process For New Distributed Generators and/or Energy Storage Systems 5 MW or Less Connected in Parallel with Utility Distribution Systems.

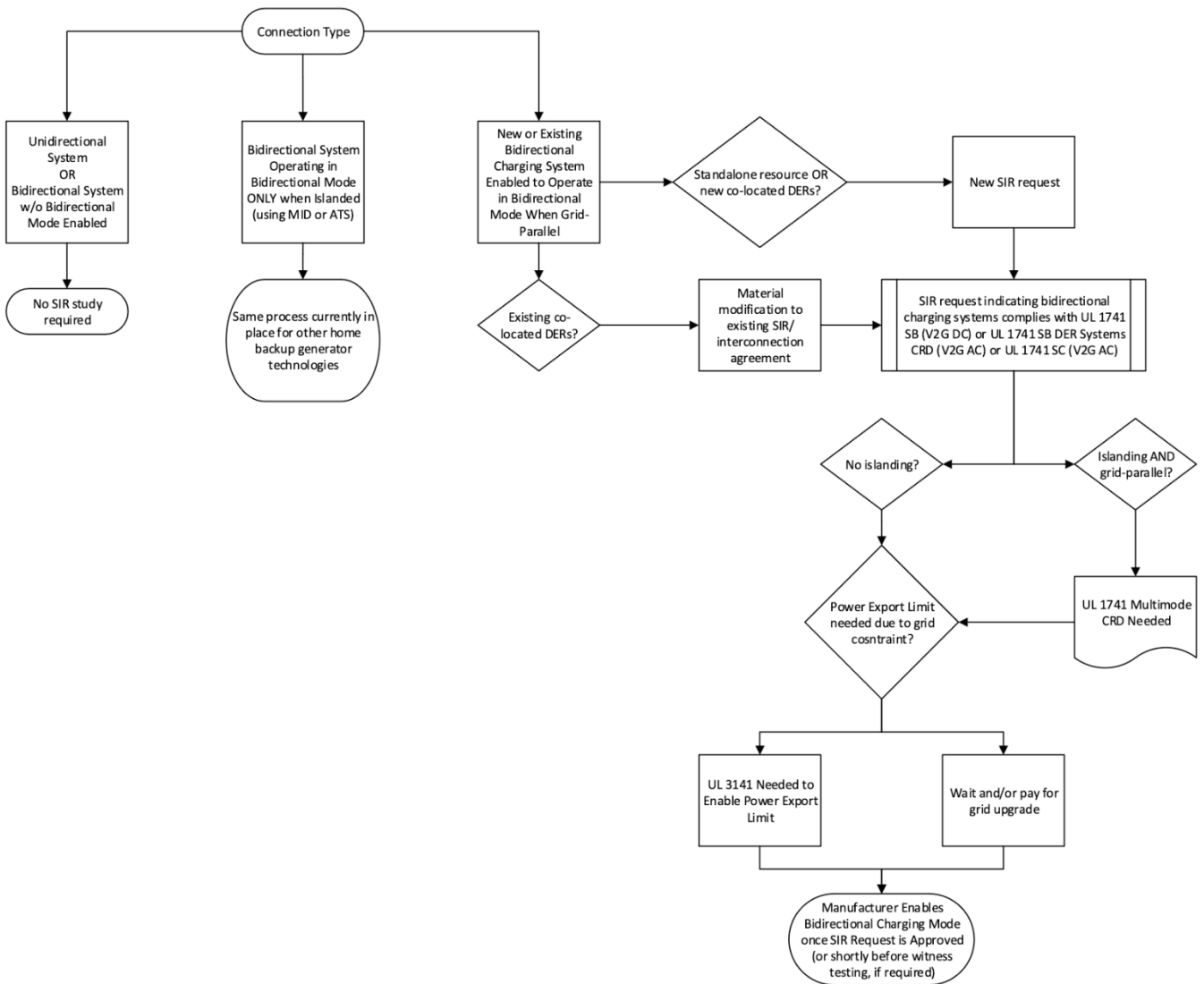
² See California Public Utilities Commission’s Electric Rule 21: Generating Facility Interconnections available at <https://www.cpuc.ca.gov/Rule21/>.

³ See The Code of Maryland Regulations (COMAR) 20.50 available at <https://regs.maryland.gov/us/md/exec/comar/20.50>.

Another example where load-only deployment of bidirectional charging systems will soon become increasingly common is in the anticipated prevalence of AC bidirectional charging solutions. At least one such system is already on New York roads and in garages and homes across the state. These systems are lower-cost and simpler than DC bidirectional charging systems because they do not require a separate inverter, a dark-start battery, or, in some cases, a gateway. As a result, it is likely New York utilities will see widespread adoption of a given vehicle and charger model marketed for both unidirectional and, **if and only if** enabled by the manufacturer, bidirectional charging. If there is no option to connect these systems in load-only mode without going through the SIR process, these customers, which may quickly number in the tens of thousands, will be faced with the added costs and delay associated with SIR study, even if they do not request that the manufacturer enable bidirectional charging. This, too, directly undercuts New York's goals for EV charger deployment and the swift EVSE connection process envisioned by the NY PSC (i.e., via the Electric Vehicle Infrastructure and Interconnection Working Group).

Because both types of bidirectional charging systems (backup-only and load-only) are not designed to nor would be deployed to discharge energy to the grid while grid-connected, they should not be subject to New York's SIR review process per the New York State Standardized Interconnection Requirements and Application Process For New Distributed Generators and Energy Storage Systems 5 MW or Less Connected in Parallel with Utility Distribution Systems, Appendix A, unless and until they request such treatment (i.e., to subsequently enable grid-parallel bidirectional charging mode). Instead, they are more appropriately treated as (a) residential standby generators (for island-only systems) and (b) unidirectional EVSE (for bidirectional-“capable” systems not yet enabled by the manufacturer nor accessible by the customer for any bidirectional operations).

VGIC respectfully requests that the ITWG revisit the Decision Tree, considering the below flow chart and, this time, seek feedback from relevant stakeholders in the EV and EVSE industry:



VGIC and its members are committed to bringing innovative technologies to market that meet the highest standards of safety and protection while delivering meaningful value to consumers. VGIC welcomes the opportunity to discuss these comments with the ITWG.



Sincerely,

A handwritten signature in black ink, appearing to read "Steve Letendre", is positioned above the printed name.

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